RESOLUTION NO. 2026-06-18

RESOLUTION OF THE BOARD OF TRUSTEES OF LOST HILLS UNION SCHOOL DISTRICT ORDERING AN ELECTION, AND ESTABLISHING SPECIFICATIONS OF THE ELECTION ORDER

WHEREAS, the Board of Trustees (the "Board") of the Lost Hill Union School District (the "District") is committed to high levels of student achievement in local public schools by repairing and upgrading aging classrooms and schools; and

WHEREAS, the Board has determined that schools within the District need to be upgraded, repaired, expanded, improved, and better equipped in a fiscally prudent manner, to enable the District to improve accessibility for students with disabilities, improve student and school site safety/security, and retain and attract quality teachers; and

WHEREAS, the Board desires to improve the classrooms and other school buildings to improve the health and comfort of students, teachers, and staff including replacing aged heating and air conditioning and replace flooring, lighting, and windows; and

WHEREAS, the Board desires to improve student safety, campus security systems including security fencing, cameras, emergency communications systems, smoke detectors, fire alarms, and sprinklers; and

WHEREAS, the Board has determined that if the schools within the District were upgraded, repaired, expanded, improved and better equipped, in a fiscally prudent manner, our students would be safer and better prepared for futures in high school, college, or skilled trades jobs; and

WHEREAS, our schools play an important role in keeping students away from crime and gangs; supporting our youngest learners with excellent schools keeps them safe and focused on learning; and

WHEREAS, the Board believes it is in the best interest of the District to continue to address facility improvements now before they become more pressing and more costly, and provide facilities and equipment needed to support quality instruction; and

WHEREAS, students must continue to have access to classrooms equipped to promote an education with a strong foundation in science, technology, engineering, arts and math; and

WHEREAS, even if community members do not have school-age children, supporting a local bond measure is a wise investment, as good schools improve the quality of life in our community, help maintain a job-ready local workforce beginning with our youngest learners, and protect the value of our homes and local economy; and

WHEREAS, the State of California (the "State") has been unable to provide the District with enough money for the District to adequately repair schools and upgrade classrooms to provide an optimal learning environment for all students and District students deserve to have the same educational opportunities as others in the region; and

WHEREAS, the District has identified the most pressing needs in each of the District's schools to provide safe and modern classroom environments for all students; and

WHEREAS, the Board has received information regarding the possibility of a local bond measure and its bonding capacity; and

WHEREAS, a local measure will help provide funds, that are locally controlled and cannot be redirected by the State, to upgrade aging schools and protect student safety; and

WHEREAS, such measure will include public disclosure of all spending, independent annual financial and performance audits, and the formation of a committee of local citizens and business owners to ensure funds are spent as promised; and

WHEREAS, on November 7, 2000, the voters of California approved the Smaller Classes, Safer Schools and Financial Accountability Act ("Proposition 39") which reduced the voter threshold for *ad valorem* tax levies used to pay for debt service on bonded indebtedness to 55% of the votes cast on a school district general obligation bond; and

WHEREAS, concurrent with the passage of Proposition 39, Chapter 1.5, Part 10, Division 1, Title 1 (commencing with Education Code Section 15264) (the "Act") became operative and established requirements associated with the implementation of Proposition 39; and

WHEREAS, the Board desires to make certain findings herein to be applicable to this election order and to establish certain performance audits, standards of financial accountability and citizen oversight that are contained in Proposition 39 and the Act; and

WHEREAS, the Board and District has solicited stakeholder and community input on school priorities from parents, teachers, staff, the community and civic leaders; and

WHEREAS, the Board desires to authorize the submission of a proposition to the District's voters at an election to authorize the issuance of bonds to pay for certain necessary improvements and enhancements to District educational facilities which will improve the safety, health, and quality of education for students in the District; and

WHEREAS, the Board hereby determines that, in accordance with Opinion No. 04-110 of the Attorney General of the State of California, the restrictions in Proposition 39 which prohibit any bond money from being wasted or used for inappropriate administrative salaries or other operating expenses of the District shall be strictly monitored by the District's Citizens' Oversight Committee; and

WHEREAS, pursuant to Education Code Section 15270, based upon a projection of assessed property valuation, the Board has determined that, if approved by voters, the tax rate levied to meet the debt service requirements of the bonds proposed to be issued for school facilities will not exceed the Proposition 39 limits per year per $100,000 of assessed valuation of taxable property; and

WHEREAS, Elections Code Section 9400 *et seq.* requires that a tax rate statement be contained in all official materials relating to the election, including any ballot pamphlet prepared, sponsored, or distributed by the District; and

WHEREAS, the Board desires to authorize the filing of a tax rate statement and a ballot argument in favor of the proposition to be submitted to the voters at the election; and

WHEREAS, pursuant to the Elections Code, it is appropriate for the Board to request consolidation of the election with any and all other elections to be held on Tuesday, November 3, 2026, and to request the Kern County Registrar of Voters to perform certain election services for the District.

NOW THEREFORE, THE BOARD OF TRUSTEES OF THE LOST HILLS UNION SCHOOL DISTRICT DOES HEREBY RESOLVE, DETERMINE AND ORDER AS FOLLOWS:

Section 1. That the Board, pursuant to Education Code Sections 15100 *et seq.*, 15264 *et seq.*, and Government Code Section 53506, hereby requests the Kern County Registrar of Voters to conduct an election under the provisions of Proposition 39 and the Act and submit to the electors of the District the question of whether bonds of the District in the aggregate principal amount of $9,000,000 (the "Bonds") shall be issued and sold for the purpose of raising money for the projects described in Exhibits "A" and "B" hereto. Both exhibits are directed to be printed in the voter pamphlet. The District's Superintendent, or designee, is hereby authorized and directed to make any changes to the text of the measure, or to the abbreviated form of the measure, as may be convenient or necessary to comply with the intent of this Resolution, the requirements of election officials, and requirements of law.

Section 2. That the date of the election shall be November 3, 2026.

Section 3. That the purpose of the election shall be for the voters in the District to vote on a proposition, a copy of which is attached hereto and marked Exhibit "A," incorporated by reference herein, and containing the question of whether the District shall issue the Bonds to pay for improvements to the extent permitted by such proposition. In compliance with Proposition 39 policies of the Board and the Act, the ballot propositions in Exhibits "A" and "B" are subject to the following requirements and determinations:

(a) That the proceeds of the sale of the Bonds shall be used only for the purposes set forth in the ballot measure and not for any other purpose, including teacher or administrator salaries or other school operating expenses;

(b) that the Board, in establishing the projects set forth in Exhibit "B," evaluated the safety, class size reduction, classroom, educational and information technology needs of the District;

(c) that the Board shall cause an annual, independent performance audit to be conducted to ensure that the Bond monies get spent only for the projects identified in Exhibit "B" hereto;

(d) that the Board shall cause an annual, independent financial audit of the proceeds from the sale of Bonds to be conducted until all of the Bond proceeds have been expended;

(e) that the Board shall appoint a Citizens' Oversight Committee in compliance with Education Code Section 15278 no later than 60 days after the Board enters the election results in its minutes pursuant to Education Code Section 15274; and

(f) that the tax levy authorized to secure the Bonds of this election shall not exceed the Proposition 39 limits per $100,000 of taxable property in the District when assessed valuation is projected by the District to increase in accordance with Article XIIIA of the California Constitution.

Section 4. That the authority for ordering the election is contained in Education Code Sections 15100 *et seq.*, 15264 *et seq.*, and Government Code Section 53506.

Section 5. That the authority for the specifications of this election order is contained in Education Code Section 5322. In connection with ordering the election pursuant to the provisions cited above, the District has obtained reasonable and informed projections of assessed property valuations that take into consideration projections of assessed property valuations made by the Kern County Assessor that are available to the District.

Section 6. That the Kern County Registrar of Voters and the Kern County Board of Supervisors are hereby requested to consolidate the election ordered hereby with any and all other elections to be held on November 3, 2026 within the District. As provided in Elections Code Section 10403, the District acknowledges that the consolidation election will be conducted in the manner described in Elections Code Section 10418.

Section 7. That the Secretary of the Board is hereby directed to deliver a certified copy of this Resolution to the Kern County Registrar of Voters no later than August 7, 2026.

Section 8. That Bonds may be issued pursuant to Education Code Section 15264 *et seq.* or Government Code Section 53506. The maximum rate of interest on any Bond shall not exceed the maximum rate allowed by Education Code Sections 15140 to 15143, as modified by Government Code Section 53531.

Section 9. That the Board requests the governing body of any such other political subdivision, or any officer otherwise authorized by law, to partially or completely consolidate such election and to further provide that the canvass of the returns of the election be made by any body or official authorized by law to canvass such returns, and that the Board consents to such consolidation. The Board further authorizes the submission of a tax rate statement and primary and rebuttal arguments, as appropriate, to be filed with the Kern County Registrar of Voters by the established deadlines.

Section 10. Pursuant to Education Code Section 5303 and Elections Code Section 10002, the Board of Supervisors of Kern County is requested to permit the Registrar of Voters to render all services specified by Elections Code Section 10418 relating to the election, for which services the District agrees to reimburse Kern County, such services to include the publication of a Formal Notice of School Bond Election and the mailing of the sample ballot and tax rate statement (described in Elections Code Section 9401) pursuant to the terms of Education Code Section 5363 and Elections Code Section 12112.

ADOPTED, SIGNED AND APPROVED this 18th day of June, 2026.

BOARD OF TRUSTEES OF THE

President

Attest:

STATE OF CALIFORNIA)
)ss
KERN COUNTY)

I, Harrison Favereaux, do hereby certify that the foregoing is a true and correct copy of Resolution No. 2026-_____, which was duly adopted by the Board of Trustees of the Lost Hills Union School District at the meeting thereof held on the 18th day of June, 2026, and that it was so adopted by the following vote:

AYES:

NOES:

ABSENT:

ABSTENTIONS:

_____
Secretary

EXHIBIT A

Lost Hills Union School District Repair, Safety, Upgrade Measure: To retain teachers / maintain quality local schools by upgrading older schools; ensure school safety / accessibility; repair deteriorating classrooms / bathrooms, update fire / electrical / lighting / security systems, replace air conditioning; repair, equip facilities; shall Lost Hills Union School District's measure be adopted, authorizing $9,000,000 in bonds at legal rates, levying 3¢ per $100 of assessed valuation, ($720,000 annually) while bonds are outstanding, no money for administrators' salaries, requiring spending disclosure / citizens oversight, all funds staying local?

Bonds – Yes

Bonds – No

EXHIBIT B

FULL TEXT BALLOT PROPOSITION
OF THE LOST HILLS UNION SCHOOL DISTRICT
BOND MEASURE ELECTION NOVEMBER 3, 2026

The following is the full proposition presented to the voters by the Lost Hills Union School District.

Lost Hills Union School District Repair, Safety, Upgrade Measure: To retain teachers / maintain quality local schools by upgrading older schools; ensure school safety / accessibility; repair deteriorating classrooms / bathrooms, update fire / electrical / lighting / security systems, replace air conditioning; repair, equip facilities; shall Lost Hills Union School District's measure be adopted, authorizing $9,000,000 in bonds at legal rates, levying 3¢ per $100 of assessed valuation, ($720,000 annually) while bonds are outstanding, no money for administrators' salaries, requiring spending disclosure / citizens oversight, all funds staying local?

PROJECT LIST

The Board of Trustees of the Lost Hills Union School District is committed to **improving the quality of education** in our local public schools by upgrading aging classrooms and science labs and improving student safety, providing safe, secure, modern classrooms and technology needed to ensure a high-quality education in a safe, secure, and upgraded learning environment. To that end, the Board evaluated the District's urgent and critical facility needs, including safety issues, class size reduction, basic repairs, computer and information technology in developing the types of projects to be funded by this measure as described below.

This bond includes strict accountability requirements to make sure public funds are used appropriately. These requirements include public disclosure of all spending, independent annual financial and performance audits, and the formation of a committee of local citizens and business owners to ensure all spending is in line with the promises made in the measure. What's more, by law, all funds must be used to improve our local schools and cannot be taken by Sacramento, the County or anyone else.

In approving this Project List, the Board of Education determines that the District must:

(i) **UPGRADE classrooms, libraries, and other school facilities to improve learning and prepare our students to go on to high school, college and for their careers; and**

(ii) **RETAIN AND ATTRACT quality teachers; and**

(iii) **REPLACE heating and cooling systems to promote health, safety, and learning at District schools; and**

(iv) **IMPROVE access for disabled persons; and**

(v) **REPAIR and upgrade building foundations; and**

(vi) **INSTALL energy efficiency facilities; and**

(vii) **REPAIR AND UPGRADE security systems for student safety; and**

(ix) **REQUIRE a transparent system of accountability, including a Project List detailing how money will be used, a citizens' oversight committee and public disclosure of how all funds are spent.**

The Project List includes the following types of upgrades and improvements at District schools and sites:

DEDICATED LOCAL SCHOOL FUNDING FOR NECESSARY SCHOOL IMPROVEMENTS

Goal and Purpose: **Lost Hills Union School District schools are still relying on old and aging air conditioning and heating systems. These outdated HVAC units break down frequently and are increasingly costly to repair. Replacing them now is a cost-effective investment that will help ensure students and teachers can focus on learning in safe, comfortable classrooms.**

Many local schools look fine from the outside but need basic health and safety improvements inside because they were built more than 50 years ago. Funds from this measure will address the most urgent and basic improvements, such as replacing old heating and air conditioning systems, repairing leaky roofs, and upgrading more than old plumbing systems; so that students can learn in a healthy and safe environment

- Upgrade classrooms to provide access for students with disabilities.
- Repair building foundations.
- **Update classrooms and educational facilities to meet current safety codes.**
- Replace outdated electrical, plumbing and water systems.
- Replacing old air conditioning, heating, and ventilation systems.
- **Update restrooms.**
- Replace and repair athletic facilities.
- Replace asphalt, resurface and expand parking lots.
- Improving emergency communication systems.
- Repair and upgrade school security to improve student safety.
- Install signage.
- Install and upgrade solar and energy efficiency improvements.

SAFETY AND STUDENT SUCCESS

Goal and Purpose: **If we want our students to succeed in high school, college and careers, they must be skilled in the use of today's technologies and have a solid background in science, math, reading, writing and technology. This measure will make this possible.**

- Bring all classrooms up to the same safety standards.
- Ensure hands-on science labs are all up to date.

- Upgrade electrical equipment.
- Improve student support facilities and playfields.
- **Improving accessibility for students with disabilities.**

In addition to the projects listed above, the repair and renovation of each of the existing school and District support facilities may include, but not be limited to, some or all of the following: add or renovate student and staff restrooms; repair and upgrade electrical, plumbing, heating, ventilation and air conditioning systems; upgrade of facilities for energy efficiencies, electrical generation and financial savings, including solar panels; improve accessibility for students, staff and the public with disabilities; repair and replace worn-out and deteriorated roofs, windows, walls, tackboards, floors, sinks, doors and drinking fountains/hydration stations; construct or renovate offices and facilities for multipurpose and indoor/outdoor learning spaces, more efficient areas for professional development and administration and for the safety of students on campuses; install wiring and electrical systems to safely accommodate computers, technology and other electrical devices; upgrade or construct support facilities including administrative, central kitchens, physical education, music, art, and performing and fine arts classrooms or facilities, science, robotics, computer labs/classrooms, career technical facilities, media centers/libraries and buildings, covered eating areas, shade and rain shelter, playgrounds, administrative, transportation and maintenance facilities and yards; acquire modular/portable classrooms; repair and replace fire alarms, emergency communications, public address, speaker, and security systems; improve facilities to satisfy ADA and seismic requirements; as needed, removal of hazardous materials like asbestos and lead paint from older schools, as needed; improve/resurface or replace asphalt, broken concrete and improve hard courts, turf, tracks, athletic fields, irrigation, and downspout drainage systems and campus landscaping; install signage, flagpoles, solar electric systems and fencing; expand parking and improve pick-up and drop-off areas and crosswalks; improve all site utilities; acquire land; construct new school buildings; upgrade or replace interior and exterior painting, floor covering, including carpets, and school facades; demolition; upgrade kitchens, food service and school cafeterias; construct various forms of storage and support spaces and classrooms; improve quads; repair, upgrade and install interior and exterior lighting systems and back-up power generators; improve or replace playgrounds, play structures, athletic fields/stadiums, lockers, gymnasiums, and facilities to support student health, fitness and safety; construct or upgrade aquatic facilities, pools, including pool filtration systems, plaster and decking; replace outdated fences, including security fences and security systems (including access control systems and cameras), provide lunch shelters, indoor space for assemblies or for rainy day lunch; upgrade music labs, multi-purpose rooms, learning centers and media centers; add or upgrade parking lots including solar systems and electric vehicle charging stations. In addition to the listed projects stated above, the Project List also includes the acquisition of a variety of instructional, maintenance and operational equipment, including the reduction or retirement of outstanding lease obligations and interim funding incurred to advance fund projects from the Project List; payment of the costs of preparation of all facility planning, facility studies, assessment reviews, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), design and construction documentation, DSA oversight, and temporary housing of dislocated District activities caused by construction projects.

The upgrading of technology infrastructure includes, but is not limited to, network rewiring, cabling, computers, portable interface devices, servers, switches, routers, modules, sound projection systems, laser printers, scanners and copiers, digital white boards and smart boards, document projectors, upgrade voice-over-IP, clock/telephone/ intercom systems, call manager and network

security/firewall, wireless technology systems, refresh classroom technology, miscellaneous IT and instructional equipment, data storage, archiving and preservation, phones, identity cards and the construction and installation of a data center in the cloud for the District's enterprise systems, such as resource planning, websites, domain name systems, cloud applications and information security.

The budget for each project is an estimate and may be affected by factors beyond the District's control. Some projects throughout the District may be undertaken as joint use projects in cooperation with other local public or non-profit agencies. The final cost of each project will be determined as plans and construction documents are finalized, construction bids are received, construction contracts are awarded and projects are completed. Based on the final costs of each project, certain of the projects described above may be delayed or may not be completed. Demolition of portable classrooms and existing facilities and reconstruction of facilities scheduled for repair and upgrade may occur, if the Board determines that such an approach would be more cost-effective in creating more enhanced and operationally efficient campuses. Necessary site preparation/restoration may occur in connection with new construction, renovation or remodeling, or installation or removal of relocatable or modular classrooms, including ingress and egress, removing, replacing, or installing irrigation or drainage systems, traffic signals, sewer or utility lines, trees and landscaping, relocating fire access roads, and acquiring any necessary easements, licenses, permits, or rights of way to the property. The listed projects will be completed as needed. Each project is assumed to include its share of furniture, equipment, architectural, engineering, legal fees and similar planning costs, connection fees, program and project management, staff training expenses and a customary contingency for unforeseen design and construction costs. Proceeds of the bonds may be used to pay or reimburse the District for the cost of District bond audits and staff when performing work on or necessary and incidental to bond projects. Bond proceeds shall only be expended for the types of projects and purposes identified herein. The District shall create an account into which proceeds of the bonds shall be deposited and comply with the reporting requirements of Government Code § 53410.

****

FISCAL ACCOUNTABILITY

THIS MEASURE REQUIRES A CLEAR SYSTEM OF ACCOUNTABILITY, INCLUDING A PROJECT LIST DETAILING HOW THE MONEY WILL BE USED, A CITIZENS' OVERSIGHT COMMITTEE, AND INDEPENDENT AUDITS TO ENSURE MONEY IS SPENT PROPERLY.

In accordance with Education Code Section 15272, the Board of Education will appoint a citizens' oversight committee and conduct annual independent audits to assure that funds are spent only on District projects and for no other purpose. The expenditure of bond money on these projects is subject to stringent financial accountability requirements. By law, performance and financial audits will be performed annually, and all bond expenditures will be monitored by an independent citizens' oversight committee to ensure that funds are spent as promised and specified. The citizens' oversight committee must include, among others, representation of a bona fide taxpayers association, a business organization and a senior citizens organization. No District employees or vendors are allowed to serve on the citizens' oversight committee.

No Administrator Salaries: Proceeds from the sale of the bonds authorized by this proposition shall be used only for the acquisition, construction, reconstruction, rehabilitation, or replacement of school facilities, including the furnishing and equipping of school facilities, and not for any other purpose, including teacher and school administrator salaries and other operating expenses.